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1. Purpose

The purpose of these policies is to ensure AG Composites complies with the International Traffic in Arms Regulations (ITAR), 22 C.F.R. §§ 120–130. Our company manufactures composite components that may be subject to ITAR controls. These policies establish procedures to safeguard controlled technical data, restrict unauthorized exports, and maintain compliance with U.S. Department of State requirements.

2. Scope

These policies apply to:

- All employees and owners of AG Composites.
- All technical data, software, materials, and articles produced, stored, or transferred by the company.
- All interactions with customers, suppliers, and partners, both domestic and foreign.

3. Policy Statement

It is the policy of AG Composites to:

1. Comply with all ITAR regulations.
2. Prevent unauthorized access, disclosure, or transfer of ITAR-controlled technical data or defense articles.
3. Ensure all employees understand their responsibilities under ITAR.
4. Report and investigate any potential violations immediately.

4. Key Roles & Responsibilities

- VP of Operations and Business Manager are authorized to sign and submit ITAR-related documents to the U.S. Department of State. Ensure company compliance and provides final approval for ITAR-related activities.
- Business Manager: Manages day-to-day compliance. Conducts training, maintains records, and audits ITAR procedures.
- Employees & Contractors: Must follow ITAR procedures at all times. Report suspected violations immediately. Do not share ITAR-controlled data with foreign persons without authorization.



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5. Control of Technical Data & Defense Articles

1. Access Restrictions: Only U.S. persons (citizens, permanent residents, asylees, refugees) may access ITAR-controlled information without special authorization. Foreign nationals must have an approved export license or Technical Assistance Agreement (TAA).
2. Physical Security: ITAR-controlled materials stored in locked rooms or cabinets. Restricted areas marked and access controlled by badges/locks.
3. Electronic Security: ITAR technical data stored on secure servers located in the U.S. No storage on personal devices or cloud services not designated as ITAR-compliant. Email encryption required when transmitting ITAR data.
4. Manufacturing Controls: Clearly mark ITAR-controlled work orders, drawings, and travelers. Segregate ITAR work from commercial production when practical.

6. Personnel & Hiring

All new hires must undergo citizenship verification (I-9, E-Verify) before access to ITAR-controlled data. HR must notify the Business Manager before onboarding any foreign national. Foreign visitors require prior approval and must be escorted at all times.

7. Training

Annual ITAR compliance training is mandatory for all employees. Specialized training for engineers, program managers, and supply chain personnel. Records of training must be maintained for 5 years.

8. Recordkeeping

Maintain export records, licenses, agreements, and training logs for 5 years. Store records securely and make available for audits by DDTC or government authorities.

9. Suppliers & Subcontractors

All suppliers receiving ITAR-controlled data must be U.S. persons or have appropriate authorization. Flow-down clauses in purchase orders/contracts must specify ITAR compliance requirements. Suppliers subject to regular audits and compliance certifications.



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10. Reporting & Violations

Employees must immediately report suspected violations to the Business Manager or VP of Operations. No retaliation will occur against employees who report in good faith. Violations will be investigated, and corrective actions will be taken. Authorized leaders will notify the U.S. Department of State if required.

11. Auditing & Continuous Improvement

Internal ITAR audits are conducted at least annually. Nonconformities documented and corrected. Policies reviewed and updated annually or when ITAR regulations change.

12. Disciplinary Action

Violations of this policy may result in disciplinary action up to and including termination, as well as potential civil or criminal penalties under ITAR.